

		any such dispute, the court ultimately will decide any unresolved dispute. The request for exclusion form must be referenced in the class notice in every section that discusses opting out/requesting exclusion so that class members are aware that it should be used to request exclusion. In addition, the request for exclusion form should make it clear that aggrieved employees cannot opt out of the PAGA portion of the settlement. Class members and aggrieved employees may object to the allocation of the settlement to PAGA penalties. Thus, on the first row, left column of the table on page 3 of the class notice, the phrase “Participating Class Members Can Object to the Class Settlement but not the PAGA Settlement” should be amended to state “Participating Class Members Can Object to the Class Settlement.” In Section 1 on page 3 of the class notice, the phrase “rest breaks” in the description of this action should be removed as that is not a claim in the Complaint or PAGA notice. Counsel should propose a realistic Final Approval Hearing date, bearing in mind that all papers in support of the Final Approval Hearing, including detailed hourly breakdowns of plaintiff’s attorneys to support a lodestar cross-check, detailed plaintiff attorney cost breakdowns, an Administrator declaration and invoice, and plaintiff’s declaration to support the enhancement request must be filed at least 16 calendar days before the Final Approval Hearing date to provide enough time for court review, and must be served in compliance with CCP notice of motion requirements. Plaintiff is ordered to give notice of this ruling to the LWDA and Defendants.
2	30-2024-01405179 Miranda vs. Cleanroom Tecs, Inc.	Plaintiff Pastor E. Miranda’s (“Plaintiff”) Motion for Preliminary Approval of Class Action and PAGA Settlement is GRANTED. A Final Approval Hearing is set for December 14, 2026 at 1:30 p.m. All papers in support of the Final Approval Hearing, including detailed hourly breakdowns of plaintiff’s attorneys to support a lodestar cross-check, detailed plaintiff attorney cost breakdowns, an Administrator declaration and invoice,

		and plaintiffs’ declarations to support the enhancement request, must be filed at least 16 calendar days before the Final Approval Hearing date to provide enough time for court review, and must be served in compliance with CCP notice of motion requirements. IT IS ORDERED THAT Plaintiff must provide a [Proposed] Order in accordance with this ruling and with reference to the amendments to the settlement agreement within five (5) days of this ruling.
3	30-2025-01454520 Spencer as Successor-in-Interest vs. The Bank of New York Mellon Trustee	Defendants NewRez LLC dba Shellpoint Mortgage Servicing (“Shellpoint”) and The Bank of New York Mellon, as Trustee for the Certificateholders of the CWABS Inc., AssetBacked Certificates, Series 2006-24’s (“BNYM”) (collectively, “Defendants”) Motion for Relief from Waiver of Objections is DENIED AS MOOT, as Defendants did not waive their objections to written discovery that was never effectively served on Defendants. Defendants’ Alternative Motion for an Order Confirming No Waiver Occurred is GRANTED. As a threshold matter, Plaintiffs filed two untimely oppositions to this Motion. For the conservation of judicial resources, the court considered the merits of these oppositions. However, Plaintiffs and Plaintiffs’ counsel are admonished to comply with all procedural rules moving forward in this action with respect to both service and timely filing of their papers. Plaintiffs are warned that the court may exercise its discretion not to consider such procedurally defective filings in the future. Plaintiffs allege that they served written discovery on Defendants on February 4, 2026 when they served Ian A. Rambarran, the Chief Executive Officer of Klinedinst PC. (ROA 250 at p. 1.) However, Defendants’ attorneys of record in this action are Marquis C. Stepteau and Neeru Jindal of Klinedinst PC. (Stepteau Dec. ¶ 4.) They “have made general appearances since the time of service of the Complaint and have been in regular communication with Plaintiffs’ counsel, Peter Winkler, by email and telephone.” (<i>Id.</i>) They “have also appeared jointly and separately at hearings and in connection with other matters related to this action.” (<i>Id.</i>) “No other attorney representing Defendants have been in active communication with Mr. Winkler.” (<i>Id.</i> ¶ 5.)